



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2024-30065 / PODS Case No. C-031237 regarding Police Officer Alexander Kayen, Tax No. 950666

Date: July 6, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Kayen searched an individual without sufficient legal authority, used offensive language and was discourteous towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Kayen will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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December 1, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Alexander Kayen (Tax Reg #950666, DADS #2024-30065)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charges along with a penalty of Training was agreed upon and signed by all parties on October 14, 2025 and was endorsed by Assistant Deputy Commissioner Anne Stone on November 20, 2025.

On November 23, 2022, a civilian named [REDACTED] was riding on the subway at 14th Street-Union Square in Manhattan. Officer Kayen was patrolling in the station along with a partner. A number of civilians approached the officers, stating that a civilian on the train had threatened to stab someone. The officers went onto the train and attempted to escort the individual, [REDACTED] from the train. [REDACTED] resisted, and the officers were eventually able to handcuff him. The officers issued [REDACTED] a summons for disorderly conduct.

Due to [REDACTED] behavior, the officers called for EMT's to have [REDACTED] evaluated. The EMT's arrived and determined that [REDACTED] needed to be taken to the hospital. Body-worn camera captured Officer Kayen twice searching [REDACTED] once while waiting on the platform and once at the hospital. Officer Kayen stated that the purpose of these searches was to obtain pedigree information for [REDACTED]. However, warrantless searches for the purpose of obtaining pedigree information are not permitted by the Patrol Guide.

Body-worn camera also captured Officer Kayen stating to [REDACTED] that he was "acting crazy" and "acting like a lunatic", in addition to using the word "fuck" multiple times while speaking to [REDACTED]. These statements were offensive and discourteous, and served no legitimate law enforcement purpose.

On November 20, 2025, in return for an acceptance by Officer Kayen of the findings regarding the specifications pursuant to a Negotiated Settlement, the CCRB recommended a dismissal of the specifications with the further recommendation that Officer Kayen receive Training. This is a downward departure for the offensive language charge. This recommendation

is due to Officer Kayen's fourteen years of service and minimal prior disciplinary history, as well as an acknowledgment that in this situation Officer Kayen was dealing with a volatile situation.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board